

COLORADO COURT OF APPEALS 2 East 14 th Avenue Denver, Colorado 80203	
Appeal from District Court San Miguel County, State of Colorado Case No. 2024 CV 8 The Honorable Laura Harvell	
Plaintiff - Appellant: Emily Masson v. Defendant - Appellee: San Miguel Authority for Regional Transportation, Town of Mountain Village, and Town of Telluride	▲ COURT USE ONLY ▲
<i>Attorneys for Defendant – Appellee San Miguel Authority for Regional Transportation:</i> Dalton Kelley, #53948 David G. Mayhan, #15146 Butler Snow LLP 1801 California Street, Suite 5100 Denver, Colorado 80202 Telephone: (720) 330-2300 Fax: (720) 330-2301 dalton.kelley@butlersnow.com david.mayhan@butlersnow.com	Case Number: 2026CA391
ANSWER BRIEF OF APPELLEE SAN MIGUEL AUTHORITY FOR REGIONAL TRANSPORTATION (“SMART”)	

CERTIFICATE OF COMPLIANCE

I hereby certify that this brief complies with all requirements of C.A.R. 28 and C.A.R. 32, including all formatting requirements set forth in these rules. Specifically, the undersigned certifies that:

The brief complies with the applicable word limits set forth in C.A.R. 28 (g).

It contains 8,594 words (answer brief does not exceed 9,500 words).

The brief complies with the standard of review requirements set forth in C.A.R. 28(a)(7)(A).

For each issue raised by appellant, the brief contains under a separate heading before the discussion of the issue, a statement: (1) of whether appellee agrees with the appellant's statements concerning the standard of appellate review with citation to authority; and (2) whether the appellee agrees with the appellant's statement that the issue was preserved, and if not, why not.

I acknowledge that my brief may be stricken if it fails to meet the requirements of C.A.R. 28 and C.A.R. 32.

s/ Dalton Kelley
Dalton Kelley, #53948

TABLE OF CONTENTS

CERTIFICATE OF COMPLIANCE	i
TABLE OF CONTENTS	ii
TABLE OF AUTHORITIES	v
ISSUES PRESENTED FOR REVIEW	1
STATEMENT OF THE CASE	1
TABOR and the Uniform Election Code	1
Ballot Issue 3A and The Election	3
The Election Contest and Judgment	4
The Order Regarding SMART’s Motion for Attorneys Fees	6
SUMMARY OF THE ARGUMENTS	7
ARGUMENT	11
1. The Trial Court did not abuse its discretion when it found that Masson’s lawsuit was frivolous and lacked substantial justification, because the Trial Court adopted the analysis contained in SMART’s motion for attorneys fees and reply, and there is ample evidence in the record to support the Court’s conclusion that Masson’s pursuit of the lawsuit ignored well-established law that was contrary to her position.	11
A. Standard of review	11
B. Preservation.....	13
i. Masson’s opening brief does not comply with the requirements of C.A.R. 28(a)(7)(A), therefore, her arguments should be treated as not preserved and her appeal should be dismissed.....	13

ii.	Masson’s attempt to incorporate her arguments from her response to the Towns’ motions for attorneys fees in her response to SMART’s motion for attorneys fees was ineffective and did not preserve those arguments.....	14
iii.	Masson’s vague references to a constitutional violation for failure to provide additional notice of the opportunity to submit comments for the TABOR Notice were not sufficiently specific to preserve the arguments for appeal.	16
C.	The Trial Court’s order finding that Masson’s lawsuit was frivolous and lacked substantial justification is sufficient, with evidentiary support in the record, to affirm the award of attorneys fees to SMART.....	22
i.	The Trial Court did not abuse its discretion when it found, through adoption of the analysis of the factors set forth in § 13-17-103, C.R.S. 2024* in SMART’s motion for attorneys fees and reply, that SMART was entitled to attorneys fees.....	23
ii.	The Trial Court did not abuse its discretion when it found that there was no rational argument based on law or evidence to support Masson’s claim, and there is ample evidence in the record to support that finding.	28
iii.	Masson waived her right to a hearing on whether SMART was entitled to fees and, in any event, the Trial Court was not required to conduct a redundant hearing.....	31

2.	The directive in § 1-11-217(2), C.R.S. 2024* is clear: the judgment against Masson shall provide that Masson is liable for all fees incurred in the election for Ballot Issue 3A by all contestees, including reasonable costs and attorneys fees, because her suit was ruled frivolous.	32
A.	Standard of review and preservation.	32
B.	SMART and the Towns are entitled to attorneys fees under § 1-11-217(2), C.R.S. 2024* because there was a judgement entered against Masson and her lawsuit was ruled frivolous.	33
CONCLUSION		34
REQUEST FOR ATTORNEYS FEES		35
CERTIFICATE OF SERVICE		38

TABLE OF AUTHORITIES

Cases

<i>Bd. of Comm’rs, Cnty. of Boulder v. Eason</i> , 976 P.2d 271 (Colo. App. 1998).....	10, 11, 26
<i>Boger v. Smith</i> , 238 P. 57 (Colo. 1925).....	7
<i>Bruce v. City of Colorado Springs</i> , 129 P.3d 988 (Colo. 2006).....	7, 9, 20, 28
<i>Bruce v. City of Colorado Springs</i> , 252 P.3d 30 (Colo. App. 2010).....	13
<i>Cacioppo v. Eagle County School Dist. Re-50J</i> , 92 P.3d 453 (Colo. 2004).....	2, 29
<i>Castle Rock Bank v. Team Transit, LLC</i> , 292 P.3d 1077 (Colo. App. 2012).....	12
<i>Cendant Corp. & Subsidiaries v. Dep’t of Revenue</i> , 226 P.3d 1102 (Colo. App. 2009).....	28
<i>City of Aurora ex rel. Util. Enter. v. Colorado State Eng’r</i> , 105 P.3d 595 (Colo. 2005), as modified on denial of reh’g (Feb. 14, 2005).....	12
<i>CSX Transp., Inc. v. Miller</i> , 159 Md.App. 123, 858 A.2d 1025 (2004)	21
<i>Doubleday v. People</i> , 364 P.3d 193 (Colo. 2016).....	32
<i>Fail v. Cmty. Hosp.</i> , 946 P.2d 573 (Colo. App. 1997), <i>aff’d</i> , 969 P.2d 667 (Colo. 1998)	12
<i>Frisco Lot 3 LLC v. Giberson Ltd. P’ship, LLLP</i> , 564 P.3d 1061 (Colo. App. 2024).....	15
<i>Fulton Inv. Co. v. Farmers’ Reservoir & Irrigation Co.</i> , 231 P. 61 (Colo. 1925).....	14, 25
<i>Gebert v. Sears, Roebuck & Co.</i> , 543 P.3d 409 (Colo. App. 2023).....	6, 16, 17

<i>Glover v. Serratoga Falls LLC</i> , 498 P.3d 1106 (Colo. 2021).....	11, 28
<i>Gravina Siding & Windows Co. v. Gravina</i> , 516 P.3d 37 (Colo. App. 2022).....	21
<i>In re Est. of Everhart</i> , 493 P.3d 272 (Colo. App. 2021).....	36
<i>In re Marriage of Rodrick</i> , 176 P.3d 806 (Colo. App. 2007).....	11
<i>M.S. v. People</i> , 303 P.3d 102 (Colo. 2013).....	6, 19
<i>Marquez v. Schaefer</i> , 571 P.3d 920 (Colo. App. 2025).....	16, 17, 18, 22
<i>Martinez v. People</i> , 344 P.3d 862 (Colo. 2015).....	17
<i>McCoy v. People</i> , 442 P.3d 379 (Colo. 2019).....	32
<i>O’Quinn v. Baca</i> , 250 P.3d 629 (Colo. App. 2010).....	8, 13
<i>Padilla v. Ghuman</i> , 183 P.3d 653 (Colo. App. 2007).....	31, 32
<i>Parker v. Davis</i> , 888 P.2d 324 (Colo. App. 1994).....	9, 24, 26
<i>Pedlow v. Stamp</i> , 776 P.2d 382 (Colo. 1989).....	24, 25, 26
<i>People v. Duran</i> , 382 P.3d 1237 (Colo. App. 2015).....	16
<i>People v. Hicks</i> , 262 P.3d 916 (Colo. App. 2011).....	17, 22
<i>People v. Muckle</i> , 107 P.3d 380 (Colo. 2005).....	12
<i>People v. Notyce</i> , 328 P.3d 302 (Colo. App. 2014).....	13

<i>Remote Switch Sys., Inc. v. Delangis</i> , 126 P.3d 269 (Colo. App. 2005).....	23
<i>Sullivan v. Lutz</i> , 827 P.2d 626 (Colo. App. 1992).....	24, 25, 27
<i>Taylor v. Taylor</i> , 381 P.3d 428 (Colo. App. 2016).....	17
<i>United States v. Dunkel</i> , 927 F.2d 955 (7th Cir.1991)	17
<i>Upper Black Squirrel Creek Ground Water Mgmt. Dist. v. Cherokee Metro. Dist.</i> , 351 P.3d 408 (Colo. 2015)	12
<i>Valentine v. Mountain States Mut. Cas. Co.</i> , 252 P.3d 1182 (Colo. App. 2011).....	13
<i>W. United Realty, Inc. v. Isaacs</i> , 679 P.2d 1063 (Colo. 1984).....	23
Statutes	
§§ 1-1-101 through 1-13-804, C.R.S. 2024 (Uniform Election Code).....	passim
§ 13-17-102, C.R.S. 2024*	passim
§ 13-17-102, C.R.S. 2025*	35
§ 13-17-103, C.R.S. 2024*	passim
§ 43-4-613, C.R.S. 2024*	3
Other Authorities	
1994 Colo. Legis. Serv. H.B. 94-1286.....	2
Rules	
C.A.R. 28.....	passim
C.A.R. 32.....	i
C.A.R. 38.....	passim
C.R.C.P. 10	9, 14, 15, 25
C.R.C.P. 121	15

ISSUES PRESENTED FOR REVIEW

1. Whether the Trial Court abused its discretion when it awarded attorneys fees to SMART after it found that Masson’s lawsuit seeking to nullify the election for Ballot Issue 3A was frivolous and lacked substantial justification for the reasons stated in SMART’s motion for attorneys fees and reply?

2. Whether § 1-11-217(2), C.R.S. 2024*’s directive that a judgment against the contestor in favor of a political subdivision “*shall* provide that the contestor is liable for *all* fees incurred in the contested election by *all* contestees, including reasonable costs and attorneys fees” means that SMART, the Town of Mountain Village and the Town of Telluride are *all* entitled to fees, regardless of whether certain parties were dismissed on the eve of trial, because there was a judgment against Masson and the lawsuit was ruled frivolous and lacking substantial justification?

STATEMENT OF THE CASE

TABOR and the Uniform Election Code

Article X, Section 20 of the Colorado Constitution (“TABOR”) was adopted by voters in 1992 to limit, among other things, the government’s ability to impose new taxes or increase tax rates without voter approval. Colo. Const. art. X, § 20. Section (3)(b) of TABOR requires districts to mail a notice to voters (“TABOR

Notice”) that only includes certain specific information about the ballot issue, including “[t]wo summaries, up to 500 words each, one for and one against the proposal, of written comments filed with the election officer by 45 days before the election.” *Id.* at § 20(3)(b). The election officer’s only duties under TABOR in connection with the comments is to receive the comments that are filed and to “maintain and accurately summarize all other relevant written comments.” *See id.*

Section 1-7-901, C.R.S. was enacted as part of House Bill 94-1286 (“HB 94-1286”), which amended the Uniform Election Code (§§ 1-1-101 through 1-13-804, C.R.S.) (the “UEC”) to add certain legal requirements to govern the receipt and summarization of comments for the TABOR Notice. *See* § 1-7-901, C.R.S. 2024*; ELECTIONS—BALLOT ISSUE NOTICES—OTHER GENERAL AMENDMENTS, 1994 Colo. Legis. Serv. H.B. 94-1286 (WEST). The impetus for HB 94-1286 was the passage of TABOR since TABOR created “several new deadlines and imposed many new requirements on state and local election officials.” *Cacioppo v. Eagle County School Dist. Re-50J*, 92 P.3d 453, 459 (Colo. 2004). The General Assembly has amended the UEC, including § 1-7-901, C.R.S., several times but has not imposed a duty on governmental entities or election officials to solicit comments or provide additional notice about the ability to submit comments for the TABOR Notice.

Ballot Issue 3A and The Election

On September 5, 2024, the SMART Board of Directors (the “Board”) adopted a resolution setting the ballot title for a ballot issue (“Ballot Issue 3A”) seeking authorization from its registered electors to impose a visitor benefit tax, a sales tax, and a property tax to maintain and improve gondola and SMART transportation services. CF, pp. 332—333, 346—351. Notice of the public hearing regarding the resolution setting the ballot title for Ballot Issue 3A and the proposed tax increases was published in advance of the Board meeting on August 21, 2024, August 23, 2024, August 25, 2024, August 28, 2024, and September 1, 2024, in accordance with § 43-4-613(2), C.R.S. 2024*. CF, pp. 338—339, 402—408. SMART certified the ballot language to the county clerks on September 6, 2024, in accordance with § 1-5-203(3)(a), C.R.S. 2024*. Under TABOR and the UEC, comments for the TABOR Notice were due September 20, 2024. *See* Colo. Const. art. X, § 20(3)(b)(v); § 1-7-901(4), C.R.S. 2024*.

Though SMART was under no legal duty to do so, SMART issued a press release on September 6, 2024, regarding the adoption of the resolution setting the ballot title for Ballot Issue 3A in the Telluride Daily Planet online edition and a local radio station reported on Ballot Issue 3A on September 9, 2024. CF, p. 660. SMART

also posted information about Ballot Issue 3A on its website prior to September 20, 2024. CF, p. 661.

At the election held within the SMART boundaries on November 5, 2024, the registered electors of SMART approved Ballot Issue 3A by a vote of 1,956 “for” and 1,758 “against.” CF, p. 659.

The Election Contest and Judgment

Emily Masson (“Masson”) filed an action to contest the election for Ballot Issue 3A under the UEC on November 26, 2024, and amended the pleading on December 3, 2024. CF, pp. 3, 659. Masson’s written statement of contest challenged the results of the election on several theories, only two of which are recognized as proper grounds to challenge an election under § 1-11-201(3)—(4), C.R.S. 2024* (that illegal votes were received in sufficient numbers to change the results of the election and that certain financial information was not provided for a debt question). *See* § 1-11-201(3)—(4), C.R.S. 2024*; CF, pp. 3—6. Masson also alleged that the TABOR Notice violated TABOR because it only contained a comment in favor of Ballot Issue 3A and that the ballot language was misleading. CF, pp. 8—11.

Masson’s written statement of contest did not include the list of electors who allegedly cast illegal votes in the election as required by § 1-11-213(7), C.R.S. 2024*. Additionally, most of Masson’s theories hinged on her belief that Ballot Issue

3A authorized debt despite the plain language contained in Ballot Issue 3A conveying that it sought to only increase taxes. CF, pp. 4—6, 333. The relief sought by Masson was “nullification of the result of Ballot issue 3A.” CF, p. 11.

In her trial brief filed on April 16, 2025, Masson proceeded to trial on two issues: “(1) whether Contestees provided sufficient reasonable notice of ballot measure 3A for opponents to submit statements of opposition, and (2) whether Measure 3A’s required TABOR ballot notice under the COLO. CONST. Art. X § 20(3)(b) was misleading.” CF, pp. 453—454. Masson waived all other claims raised in her statement of contest. CF, p. 454.

Following a bench trial and supplemental briefing, the Trial Court issued an order (the “Judgment”) concluding that Masson did not meet her burden on her claims and dismissing her election contest. CF, pp. 658—659, 664. In the Judgment, the Trial Court concluded that (i) “SMART complied with all statutory or constitutional requirements regarding public notice for the setting of the ballot title” and (ii) “the language used for the ballot issue fairly reflected the proposed question put to voters and [Masson] did not meet her burden of showing that the ballot language or the TABOR notice was clearly misleading.” CF, p. 664.

The Order Regarding SMART’s Motion for Attorneys Fees

SMART filed a motion for costs and attorneys fees pursuant to § 1-11-217(2), C.R.S. 2024* on August 25, 2025.¹ CF, p. 665. After conducting a trial and permitting post-trial briefing, and being fully briefed on the attorneys fees request, the Trial Court “reviewed the Motion, Response, and Reply as well as the record in the matter” and issued an order (the “Fees Order”) stating “[f]or the reasons stated in the Motion and Reply, and after review of the provisions of CRS 1-11-217(2) and CRS 13-17-102, the Court finds the suit as filed was frivolous and lacked substantial justification.” CF, p. 781. The Trial Court found “[w]hile Plaintiff vigorously pursued her claims, such pursuit ignored well-established law that was contrary to her position.” CF, p. 781. The Fees Order also included SMART’s reply in support of its motion for attorneys fees as an attachment. CF, pp. 782—788. The Fees Order

¹ In her Opening Brief, Masson takes issue with the timeline for filing an appeal under § 1-11-214(2), C.R.S. 2024* and the timeline for SMART to file a motion for attorneys fees. This argument is not properly before the Court because it is being raised for the first time on appeal. *Gebert v. Sears, Roebuck & Co.*, 543 P.3d 409, 415 (Colo. App. 2023). Additionally, Masson’s argument does not address any of the elements of a valid due process claim (i. identification of a constitutionally protected liberty or property interest, and ii. demonstrating that the government deprived her of that interest without constitutionally sufficient process) and amounts to little more than general grievances about timing that should be taken to the General Assembly. *See M.S. v. People*, 303 P.3d 102, 105 (Colo. 2013).

directed the parties to schedule a hearing with the Trial Court regarding the reasonableness of the fees. CF, p. 781.

On February 6, 2026, Masson filed a motion stipulating to the reasonableness of SMART's fees but reserving her right to appeal SMART's entitlement to attorneys fees. CF, pp. 803—804. The Trial Court entered an order on February 10, 2026, vacating the hearing on the reasonableness of SMART's fees and awarding the stipulated fees. CF, p. 807. Masson's appeal of the Fees Order followed.

SUMMARY OF THE ARGUMENTS

Election challenges are to be taken seriously and closely scrutinized because even allegations of election misconduct and the prospect of nullifying the results of an election threaten the very principles that are the foundation of our democratic republic. *See Bruce v. City of Colorado Springs*, 129 P.3d 988, 992 (Colo. 2006) (“Elections will be set aside only where clear grounds for such action exist.”); *Boger v. Smith*, 238 P. 57, 58 (Colo. 1925) (“contestor should be able to show some good reason for a contest before he starts it, and, in the absence of some definite and specific assertion, we must assume that there are none to be made.”).

The issue before the Court is whether the Trial Court abused its discretion when it awarded attorneys fees to SMART after Masson attempted to disenfranchise 3,714 voters by filing a frivolous election challenge that had no basis in law or fact.

See CF, p. 659. Masson's allegations against SMART were not only baseless, but her allegation that SMART was constitutionally required to provide notice about how and where to submit comments for the TABOR Notice had the potential to cast doubt on nearly every TABOR election that has occurred across the State of Colorado over the last 33 years. Frivolous claims aimed at undermining the legitimacy of a free and fair election are rightfully discouraged and sanctioned, and the Trial Court did not abuse its discretion when it decided to do so in this case by issuing the Fees Order.

The Court should affirm the Fees Order for several reasons.

First, Masson's Opening Brief does not comply with the requirements of C.A.R. 28(a)(7)(A) in that it does not contain, under a separate heading (or anywhere else), a statement of whether the issues presented were preserved, and if preserved, the precise location in the record where the issues were raised and where the court ruled. The Court is not obligated to search the record to determine whether (and, if so, how) the issues have been raised and how the issues were resolved in the Trial Court. *O'Quinn v. Baca*, 250 P.3d 629, 631 (Colo. App. 2010). The Court is authorized to refuse to consider Masson's arguments and dismiss her appeal for failure to comply with the rules. C.A.R. 38(a); *see Bruce v. City of Colorado Springs*,

252 P.3d 30, 32 (Colo. App. 2010) (“Ordinarily, we would summarily strike plaintiff’s briefs and dismiss the appeal.”).

Second, even if the Court elects to examine the 1,134-page record to determine whether Masson preserved the arguments presented in her Opening Brief, the Court will find that Masson did not properly preserve any of the arguments in connection with issue one that are presented in her Opening Brief². Masson did not address the factors under § 13-17-103, C.R.S. 2024* in her response in opposition to SMART’s motion for attorney fees and costs (“Response”). Therefore, her arguments in her Opening Brief regarding the sufficiency of the analysis in the Fees Order were not preserved. *See Parker v. Davis*, 888 P.2d 324, 326 (Colo. App. 1994) (finding that the trial court was under no obligation to issue specific findings when none of the factors listed in § 13-17-103, C.R.S. were placed in issue). Masson’s attempt to incorporate by reference the arguments made in her response to the Town of Telluride and the Town of Mountain Village’s (“Towns”) motions for attorneys fees goes beyond what is authorized by C.R.C.P. 10(c). Therefore, Masson’s attempted incorporation by reference of her response to the Town’s motions did not place the factors listed in § 13-17-103, C.R.S. in issue as they pertain to SMART’s

² Since issue two only pertains to the Town of Telluride and the Town of Mountain Village, SMART takes no position as to whether Masson’s arguments in connection with that issue were preserved.

motion for attorneys fees, and did not preserve those arguments for appeal in the Response.

Additionally, Masson failed to present to the Trial Court the sum and substance of a cogent argument to establish a new theory of law in Colorado. At no point did Masson develop a cogent argument to the Trial Court as to how SMART's compliance with the UEC and TABOR violated her constitutional rights. Vague allusions to due process rights are not sufficient to present a cogent argument to the Trial Court. Thus, the sum and substance of a constitutional argument was not presented to or ruled on by the Trial Court. Therefore, Masson's claim is not protected under § 13-17-102(7), C.R.S. 2024* and the issue was not preserved.

Fourth, the Trial Court did not abuse its discretion when it found that Masson's lawsuit seeking to nullify the election for Ballot Issue 3A was frivolous and lacked substantial justification for the reasons stated in SMART'S motion for attorneys fees and reply (collectively, "SMART's Motion"). It was within the Trial Court's discretion to adopt the analysis conducted in SMART's Motion as its own findings. *See Bd. of Comm'rs, Cnty. of Boulder v. Eason*, 976 P.2d 271, 274 (Colo. App. 1998) ("*Eason*"). Further, the Trial Court's finding that "while [Masson] vigorously pursued her claims, such pursuit ignored well-established law that was

contrary to her position” was supported by ample evidence in the record. *See Eason*, 976 P.2d at 274; *In re Marriage of Rodrick*, 176 P.3d 806, 816 (Colo. App. 2007).

Last, under the plain terms of § 1-11-217(2), C.R.S. 2024*, SMART, the Town of Mountain Village, and the Town of Telluride are entitled to all of their attorneys fees because there was a judgement rendered against Masson and her lawsuit was ruled frivolous.

In short, the Court has multiple clear paths to affirm.

ARGUMENT

- 1. The Trial Court did not abuse its discretion when it found that Masson’s lawsuit was frivolous and lacked substantial justification, because the Trial Court adopted the analysis contained in SMART’s motion for attorneys fees and reply, and there is ample evidence in the record to support the Court’s conclusion that Masson’s pursuit of the lawsuit ignored well-established law that was contrary to her position.**

A. Standard of review

SMART does not agree with Masson’s statements concerning the standard of review, because Masson does not accurately describe the abuse of discretion standard and overstates the scope of the permissive de novo review of elements of the Trial Court’s legal analysis by attempting to paint the scope as a full de novo review.

Courts review the trial court’s decision to award attorney fees for abuse of discretion. *Glover v. Serratoga Falls LLC*, 498 P.3d 1106, 1118 (Colo. 2021).

“Under the abuse-of-discretion standard, an appellate court must affirm the trial court’s decision if there is any evidence in the record to support the trial court’s finding.” *People v. Muckle*, 107 P.3d 380, 383 (Colo. 2005); *Glover*, 498 P.3d at 1118 (“Under an abuse of discretion standard, [the Court] will not disturb an award if it is supported by the record.”); e.g., *Upper Black Squirrel Creek Ground Water Mgmt. Dist. v. Cherokee Metro. Dist.*, 351 P.3d 408, 415 (Colo. 2015) (finding that a water court did not abuse its discretion where the order of costs and attorney fees had evidentiary support in the record). However, the reviewing court “may review *de novo elements* of the court’s *legal analysis* in reaching its decision.” *Fail v. Cmty. Hosp.*, 946 P.2d 573, 583 (Colo. App. 1997), *aff’d*, 969 P.2d 667 (Colo. 1998) (emphasis added). The factual findings of the trial court are binding unless they are not supported in the record. *See City of Aurora ex rel. Util. Enter. v. Colorado State Eng’r*, 105 P.3d 595, 619 (Colo. 2005), *as modified on denial of reh’g* (Feb. 14, 2005).

The Court “may uphold a correct result on any ground supported by the record, even if [it does] not accept the trial court’s reasoning in reaching such result.” *Castle Rock Bank v. Team Transit, LLC*, 292 P.3d 1077, 1081 (Colo. App. 2012).

B. Preservation

SMART does not agree that Masson preserved any of her arguments for appeal for the following reasons.

- i. Masson’s opening brief does not comply with the requirements of C.A.R. 28(a)(7)(A), therefore, her arguments should be treated as not preserved and her appeal should be dismissed.**

Masson’s opening brief does not comply with the requirements of C.A.R. 28(a)(7)(A) in that it does not contain under a separate heading (or anywhere else) a statement of “whether the issue was preserved, and if preserved, the precise location in the record where the issue was raised and where the court ruled.” C.A.R. 28(a)(7)(A) “relieve[s] courts from the burden of having to search records to determine whether (and, if so, how) issues had been raised and resolved in the trial courts” and the Court is not required to conduct such a search when a party has failed to comply with the rule. *People v. Notyce*, 328 P.3d 302, 303 (Colo. App. 2014); *See Valentine v. Mountain States Mut. Cas. Co.*, 252 P.3d 1182, 1186 (Colo. App. 2011); *O’Quinn*, 250 P.3d at 631).

Additionally, C.A.R. 38 provides that “[t]he appellate court may dismiss an appeal...or impose other sanctions it deems appropriate, including attorneys fees, for the failure to comply with any of its orders or these appellate rules.” *See Bruce v. City of Colorado Springs*, 252 P.3d 30, 32 (Colo. App. 2010). Thus, the Court is

well within its discretion to not consider any of the issues raised by Masson in her Opening Brief because she failed to comply with C.A.R. 28(a)(7)(A) and to dismiss her appeal.

ii. Masson’s attempt to incorporate her arguments from her response to the Towns’ motions for attorneys fees in her response to SMART’s motion for attorneys fees was ineffective and did not preserve those arguments.

Masson’s arguments regarding the applicable factors under § 13-17-103, C.R.S. 2024* in her Opening Brief were not preserved in her Response. Masson does not even cite § 13-17-103, C.R.S. 2024* in her Response, much less address the eight factors set forth therein. *See*, CF, pp. 719—729. Masson’s only grasping attempt to address the factors set forth in § 13-17-103, C.R.S. 2024* in connection with SMART’s motion for attorneys fees was to attempt to incorporate by reference her responses to the Towns’ motions for attorneys fees. CF, p. 720.

While C.R.C.P. 10(c) permits a *statement* in a document to be incorporated by reference in a different part of the same document or in another document, it does not authorize the wholesale incorporation of entire responsive pleadings. *See Fulton Inv. Co. v. Farmers’ Reservoir & Irrigation Co.*, 231 P. 61, 62 (Colo. 1925) (“We

do not think that a pleader has any right, under rule 2³, to adopt, wholesale, all the allegations of a previous cause of action *or pleading*, relevant and irrelevant, material and immaterial, and leave the other parties and the court to conjecture what he really intends to use, and perhaps, as here, making his second cause state three causes of action.”) (emphasis added).

Colorado appellate courts have routinely held that incorporation by reference of briefing in the trial court is improper in an appellate brief in part because attempting to incorporate material by reference “makes a mockery of the rules that govern the length of briefs.” *Frisco Lot 3 LLC v. Giberson Ltd. P’ship, LLP*, 564 P.3d 1061, 1068 (Colo. App. 2024). The same logic holds true in connection with the attempt to incorporate by reference entire prior pleadings in responsive pleadings at the trial court level, because the wholesale incorporation of prior pleadings would enable a party to exceed the page limits imposed by C.R.C.P. 121. Masson’s Response was 10 pages and her purported incorporation of her response to the Towns’ motions would add 13 pages, plus her attempt to incorporate her pretrial (17 pages) and post-trial briefing (6 pages), would greatly exceed the 15 pages limit set forth in C.R.C.P. 121.

³ The annotator’s note for C.R.C.P. 10 provides that C.R.C.P. 10(c) is similar to rule 2 of the former supreme court rules.

Additionally, Masson’s attempt to incorporate her prior pleadings in the Response is improper because “it attempts to shift, from the litigant to the court, the task of locating and synthesizing the relevant facts and arguments.” *See People v. Duran*, 382 P.3d 1237, 1240 (Colo. App. 2015). Through her attempted incorporation of her previous pleadings in the Response, Masson asked the Trial Court, and now is asking this Court, to review her response to the Towns’ motions for attorneys fees and to synthesize the relevant facts and arguments to determine how they apply to SMART’s motion for attorneys fees. Such an attempt was improper at the Trial Court level and is not sufficient to preserve the arguments for appellate review.

iii. Masson’s vague references to a constitutional violation for failure to provide additional notice of the opportunity to submit comments for the TABOR Notice were not sufficiently specific to preserve the arguments for appeal.

“In civil cases, arguments never presented to, considered by, or ruled upon by a district court may not be raised for the first time on appeal.” *Gebert*, 543 P.3d at 415. “[T]o properly preserve an argument, a party must present the sum and substance of the argument to the district court.” *Marquez v. Schaefer*, 571 P.3d 920, 929 (Colo. App. 2025). Although “talismanic language” is not required to preserve a particular argument for appeal, “a party must present the trial court with ‘an

adequate opportunity to make findings of fact and conclusions of law’ on the issue.”

Martinez v. People, 344 P.3d 862, 868 (Colo. 2015).

The party asserting an argument has the burden to bring the argument to the trial court’s attention and to provide the trial court with an opportunity to rule on it. *See Gebert*, 543 P.3d at 415 (“Because Sears did not bring these arguments to the district court’s attention and did not provide the court with an opportunity to rule on them, they are not preserved, and we will not consider them.”). Additionally, the party asserting an argument must articulate a cogent argument for review and provide legal authority to support it. *See People v. Hicks*, 262 P.3d 916, 920 (Colo. App. 2011) (a “party who does not refer to authority in support of an argument does not present a cogent argument for review.”) (internal citation omitted). “A skeletal ‘argument,’ really nothing more than an assertion, does not preserve a claim.” *Taylor v. Taylor*, 381 P.3d 428, 431 (Colo. App. 2016) (citing *United States v. Dunkel*, 927 F.2d 955, 956 (7th Cir.1991)).

For example, in *Marquez*, the Court of Appeals declined to address Marquez’s argument that a statute should not be applied retroactively to his conviction because it was not entirely clear whether the argument was “grounded on principles of statutory construction or the constitutional prohibition against ex post facto legislation.” 571 P.3d at 930. The *Marquez* court observed that “neither [Marquez’s]

complaint nor his response to the motion to dismiss nor his appellate briefs even cite the ex post facto clauses, much less develop a cogent argument thereunder.” *Id.*

Here, Masson sought to overturn the election for Ballot Issue 3A based on, among other things, a vague claim that due process required SMART to not only comply with the explicit requirements in TABOR and in § 1-7-901, C.R.S. 2024*, but to also provide some additional notice regarding the ability to submit comments for the TABOR Notice because she subjectively believed that “no one was aware of [Ballot Issue 3A] in time to provide an opposition statement.” CF, pp. 8, 461—464. At no point did Masson proffer an argument of how SMART failed to meet the explicit requirements of TABOR or § 1-7-901, C.R.S. 2024* or how those laws are constitutionally deficient. In fact, Masson conceded in her pre-trial brief and her attorney conceded at trial that there is no affirmative legal duty for SMART to solicit TABOR comments. CF, pp. 454, 1092 (the Court: “would you agree with me that the language in TABOR, there’s, there’s no affirmative duty for an entity to seek comments”—Mr. Starritt: “I do agree.”).

Additionally, Masson did not adequately establish a cogent constitutional argument based in due process law. Rather than present the trial court with arguments addressing the elements of a colorable due process claim—such as (i) identifying an alleged constitutionally protected liberty or property interest, and (ii)

demonstrating how the government deprived her of that interest without constitutionally sufficient process—Masson chose to lob conclusory assertions about the concept of due process at the trial court. *See M.S. v. People*, 303 P.3d 102, 105 (Colo. 2013); *see e.g.* CF, p. 454 (“the failure to provide sufficient time for an opposition statement to be presented, especially when the favorable statement was written by an ‘insider,’ is a substantive violation of the constitutional requirement.”); CF, p. 464 (“Since Art. X § 20(3) mandates a statement in favor and opposed; it is a substantive constitutional failure by the Contestees to not provide sufficient time for a response and a violation of due process.”); CF, p. 498 (“Even so, and despite the *lack of authority* that referring districts must ‘solicit’ positive or negative comments, basic concepts of due process dictate that some reasonable notice of the opportunity to submit them is warranted under TABOR.”) (emphasis added).

Though the words “due process” may feel like magic words to us as Americans, simply uttering them is not an incantation that establishes a cogent legal argument. At no point did Masson cite any authority to draw the Trial Court’s attention to or to support the elements that are required to present a due process claim. The only legal authority Masson offered to try to support her conclusory due process claim was a finding from a trial court decision that was not addressed nor relied on by the Colorado Supreme Court for its holding in *Bruce v. City of Colorado*

Springs. See Bruce v. City of Colorado Springs, 129 P.3d 989, 991 (Colo. 2006) (“The trial court found the City Clerk’s actions were not in bad faith, but that the City did not afford the public ‘any reasonable opportunity to further the purposes of [TABOR] with the submission of comments’” after the city clerk initially took the position that no comments would be received for the TABOR Notice before reversing her position and soliciting comments shortly before the deadline). CF, pp. 461—462, 899.

Masson repeatedly mischaracterized the line about the opportunity to submit comments from the trial court order as being the significant constitutional question at issue in the *Bruce* case, when the actual constitutional question that the Colorado Supreme Court addressed was whether the TABOR notice requirements for a “tax increase” also apply to a “tax extension.” *See Bruce*, 129 P.3d at 991—92 (“Specifically, we look at whether [TABOR’s] election notice requirements for tax increases apply to tax extensions, that is, whether a ‘tax extension’ is appropriately termed a ‘tax increase.’”); e.g., CF, p. 723 (“In [*Bruce*], the Supreme Court observed a ‘serious constitutional question’ when a public entity fails to ‘afford the public any reasonable opportunity to further the purpose of [TABOR] with the submission of comments.’”); *see* CF, pp. 461—62, 899. The Trial Court rejected Masson’s misrepresentation of the subject matter of the *Bruce* case at trial. *See* CF, p. 1096

(the Court: “I think you’re reading that more broadly than what it really said.”); CF, pp. 1096—1097 (the Court: “I read that one. I did look at that after I was reading your...brief and, and I did look at the cases that you had. I don’t think it really goes into that.”).

Additionally, Masson’s argument in her Opening Brief about there being “tension” between TABOR § (3)(b)(v) and § 1-7-901, C.R.S. 2024* is raised for the first time on appeal. It was Masson’s burden to present a cogent constitutional argument to the Trial Court, to bring the Trial Court’s attention to the argument and to provide the Trial Court with an opportunity to rule on it if that was her desire. However, Masson she failed to do so and cannot attempt to do so now. *See Gravina Siding & Windows Co. v. Gravina*, 516 P.3d 37, 50 (Colo. App. 2022) (“If [the party] wanted a weightier resolution of the issue, it should have mounted a weightier contention. Gravitas begets gravitas.” (quoting *CSX Transp., Inc. v. Miller*, 159 Md.App. 123, 858 A.2d 1025, 1083 (2004))). Further, it still remains unclear whether her alleged constitutional claims regarding the “tension” between TABOR § (3)(b)(v) and § 1-7-901, C.R.S. 2024* is a facial challenge to TABOR § (3)(b)(v) or § 1-7-901, C.R.S. 2024* in connection with all elections, or whether it is an as-applied challenge.

This case is like *Marquez* where the Court of Appeals found that Marquez failed to cite the ex post facto clauses, much less develop a cogent argument thereunder, because Masson failed to cite any relevant authority to support her constitutional claim (not a single citation to what is required for a due process claim or a case where the court found a due process violation), much less develop a cogent argument under the due process clause or under any other constitutional theory. *See Hicks*, 262 P.3d at 920 (“To the extent that defendant asserts a violation of due process of law that is separate from his ex post facto contention, we decline to address this separate contention on appeal because defendant has neither articulated a cogent argument for review nor provided supporting legal authority.”).

Masson failed to present the sum and substance of a cogent constitutional argument to the Trial Court or give the Trial Court the opportunity to rule on such a claim. Therefore, she is not protected under § 13-17-102(7), C.R.S. for attempting in good faith to establish a new legal theory in Colorado and that issue is not preserved.

C. The Trial Court’s order finding that Masson’s lawsuit was frivolous and lacked substantial justification is sufficient, with evidentiary support in the record, to affirm the award of attorneys fees to SMART.

Masson contested the election for Ballot Issue 3A under the UEC. Section 1-11-217(2), C.R.S. 2024* provides:

“A judgment against the contestor pursuant to the provisions of section[.]...1-11-212, concerning the determination of a ballot issue...*shall* provide that the contestor is liable for *all* fees incurred in the contested election by *all* contestees, including reasonable costs and attorneys fees, but a judgment for costs and fees shall be awarded in favor of the state or a political subdivision only if the suit is ruled frivolous, as provided in article 17 of title 13, C.R.S.” (emphasis added).

Therefore, the UEC provides SMART with a statutory right to all fees incurred in the contested election, including reasonable costs and attorneys fees, if there is a judgment against Masson and if her suit is ruled frivolous, as provided in article 17 of title 13, C.R.S. “A claim or defense is frivolous if the proponent can present no rational argument based on the evidence or law in support of that claim or defense.” *W. United Realty, Inc. v. Isaacs*, 679 P.2d 1063, 1069 (Colo. 1984). “To prevail on a claim for attorney fees under § 13–17–102, the claimant has the burden of proving the claim by a preponderance of the evidence.” *Remote Switch Sys., Inc. v. Delangis*, 126 P.3d 269, 275 (Colo. App. 2005).

- i. The Trial Court did not abuse its discretion when it found, through adoption of the analysis of the factors set forth in § 13-17-103, C.R.S. 2024* in SMART’s motion for attorneys fees and reply, that SMART was entitled to attorneys fees.**

Section 13-17-103, C.R.S. 2024* provides that, when granting an award for attorneys fees, the court shall specifically set forth the reasons for the award and must consider the factors set forth in subsections (a) through (h), among others, in

determining whether to assess attorney's fees and the amount of fees to be assessed against the offending party.

Though the statute lists eight factors, only factors that are relevant and factors placed in issue need to be addressed by the court. *See Parker*, 888 P.2d at 326; *Sullivan v. Lutz*, 827 P.2d 626, 627–28 (Colo. App. 1992). Additionally, a court may adopt the thorough statements of a party analyzing the factors set forth in § 13-17-103(1), C.R.S. as its findings and then grant attorneys fees based on those findings, provided that such findings are supported by evidence. *See Eason*, 976 P.2d at 274 (concluding that the court's adoption of the statements of defense attorneys analyzing the factors set forth in § 13-17-103(1), C.R.S. as its findings are sufficient, with evidentiary support, to affirm an award of attorneys fees under § 13-17-103(1), C.R.S.).

Unlike the order at issue in *Pedlow v. Stamp*⁴, the Fee Order contains all that is necessary for meaningful appellate review. 776 P.2d 382, 386 (Colo. 1989)

⁴ “The order stated in its entirety: This matter comes forward upon the motion of Defendant for award of attorney's fees. The Court has considered the motion and the response of the Plaintiff. The Court does not find the complaint to have stated a theory upon which a new theory of law could reasonably be established. Therefore, Defendant's claim for attorney's fees should be granted. The Court has examined Defendant's affidavit and awards judgement [sic] for reasonable attorney's fees for Defendant and against Plaintiff in the amount of \$900.00.” *Pedlow*, 776 P.2d at 385 n. 5.

(concluding that appellate review was not possible due to a lack of factual findings in the order or at a hearing). The Trial Court did not abuse its discretion when it found that Masson’s suit was frivolous and lacked substantial justification.

First, unlike the order in *Pedlow* which does not state that the court reviewed the record or the pertinent statutory factors, the Fees Order indicates that it considered the evidence and the pertinent statutory provisions: “The Court has reviewed...the record in this matter...and after review of the provisions of CRS 1-11-217(2) and CRS 13-17-102, the Court finds the suit as filed was frivolous and lacked substantial justification.” *Compare Pedlow*, 776 P.2d at 386; *with Sullivan*, 827 P.2d at 628 (“The trial court’s order indicates that it properly considered evidence as to the pertinent statutory factors, and its findings are sufficiently explicit to permit review of its determination.”); *see CF*, p. 781.

Second, none of the factors under § 13-17-103(1), C.R.S. 2024* were placed in issue by Masson in the Response, because (i) she failed to address any of the factors in the Response, and (ii) her grasping attempt to incorporate her arguments from her responses to the Towns’ motions for attorneys fees was ineffective, as described above under preservation. C.R.C.P. 10(c); *see Fulton Inv. Co*, 231 P. at 62; *CF*, p. 720; *see CF*, pp. 719—29. Therefore, the factors did not need to be

addressed in the Fee Order because they were not placed in issue. *Parker*, 888 P.2d at 326.

Further, in *Pedlow*, the order did not adopt the analysis of one of the parties as its own findings. 776 P.2d at 385 n. 5. Here, even though the Trial Court was not required to address any of the factors contained in § 13-17-103(1), C.R.S. 2024* because none of the factors were not placed in issue, the Fee Order did contain an analysis of the eight factors because the Trial Court adopted the reasoning set forth in SMART's Motion as its own, which was an action that was within its discretion. *See Eason*, 976 P.2d at 274; CF, p. 781. SMART's motion for attorneys fees contains a thorough analysis of each of the factors under § 13-17-103(1), C.R.S. 2024*, and such analysis was adopted by the Trial Court. CF, pp. 672—675.

Third, the Fees Order made an explicit finding that Masson's lawsuit as filed was frivolous and lacked substantial justification, because “[w]hile [Masson] vigorously pursued her claims, such pursuit ignored well-established law that was contrary to her position.” CF, p. 781. This finding was amply supported by the findings adopted by the Trial Court in SMART's Motion. CF, pp. 668—670, 775—776.

Further, the findings are supported by the conclusions of the Trial Court contained in the Judgment. CF, p. 660 (“There are no requirements for political

subdivisions to provide any specific notice to the public, to solicit comments, or any deadlines for providing notice to the public of placing a measure on a ballot.”); CF, pp. 661—662 (“SMART complied with all statutory or constitutional requirements regarding public notice of the setting of the ballot title. Thereafter, SMART had no independent duty to ensure the public knew what their rights were to submit written comments concerning the ballot issue.”).

Fourth, as discussed above under preservation, Masson failed to offer a cogent argument for the adoption of a new legal principle, which is a requirement to invoke the protection of § 13–17–102(7), C.R.S. *2024. *Sullivan*, 827 P.2d at 628 (“The statutory reference to ‘a good faith attempt to establish a new theory of law’ presumes that, in addition to filing a novel claim, the party will attempt to advance a plausible theory and argument for the adoption of the new legal principle. However, if a party fails to present plausible arguments in support of a novel claim, sanctions may be imposed under the statute, irrespective of the subjective state of mind of the party or the attorney at the time the claim was asserted.”).

In sum, the Fee Order contains sufficient factual findings to permit meaningful appellate review because it adopted the analysis in SMART’s Motion and the Trial Court did not abuse its discretion because its findings are supported by the evidence. Since the Fee Order contains sufficient findings that are supported by

the record, the Court should not disturb the award of attorneys fees to SMART. *See Glover*, 498 P.3d at 1118.

ii. The Trial Court did not abuse its discretion when it found that there was no rational argument based on law or evidence to support Masson’s claim, and there is ample evidence in the record to support that finding.

“Every person is deemed to have constructive notice of the law and what it requires.” *Cendant Corp. & Subsidiaries v. Dep’t of Revenue*, 226 P.3d 1102, 1108 (Colo. App. 2009), *as modified on denial of reh’g* (July 2, 2009). As discussed by SMART in its motion for attorneys fees, which analysis was adopted by the Trial Court in the Fee Order, “[n]either TABOR, not any other law, requires a public entity to provide notice to its electors that a ballot title has been set or to solicit comments for the TABOR Notice.” CF, p. 668. The Trial Court made a similar finding in the Judgment. CF, p. 660 (“There are no requirements for political subdivisions to provide any specific notice to the public, to solicit comments, or any deadlines for providing notice to the public of placing a measure on a ballot.”).

Additionally, Masson cites no legal authority that supports her argument that additional notice was required. The record reflects that the Trial Court rejected Masson’s reading of *Bruce* as a basis to support her claim that additional notice was required. *See* CF, pp. 1096—097.

In fact, there is precedent that is contrary to Masson’s argument that additional notice was required. In *Cacioppo*, the Colorado Supreme Court upheld the five-day statute of limitations for challenging the form or content of a ballot question finding that “the five-day timeline imposed by section 1-11-203.5 is also not ‘manifestly so limited as to amount to a denial of justice.’”). P.3d at 464 . The five-day statute of limitations begins to run when a political subdivision sets the ballot title for a ballot issue, and there is no requirement for the political subdivision to provide additional notice that the ballot title has been set (beyond general requirements pertaining to public meetings and adopted legislation) or additional notice detailing how a challenge can be filed. *See* § 1-11-203.5, C.R.S. Masson never addressed or attempted to distinguish why additional notice of the ballot title being set should be required in the context of submitting comments for the TABOR Notice (a 14-day period if the ballot title is set on the final day), when such notice is not required to toll the five-day statute of limitations for challenging the form or content of a ballot issue. *See* CF, p. 491.

In sum, the Trial Court found in the Fee Order, through adoption of the reasoning in SMART’s Motion, and in the Judgment that there was no rational argument based on law to support Masson’s argument. The Trial Court’s finding is supported by applicable law, therefore, such finding was not an abuse of discretion.

Additionally, as discussed by SMART in its motion for attorneys fees, which analysis was adopted by the Trial Court in the Fee Order, “[Masson’s] assertion that SMART failed to provide sufficient reasonable notice of Ballot Issue 3A for opponents to submit statements of opposition also presents no rational argument based on the evidence.” CF, 867. In the Judgment, the Trial Court found that notice of “the September 5, 2024, public meeting, specifically noting the purpose of meeting to consider the ballot language, was published three times in advance of the meeting in the Telluride Daily Planet.” CF, p. 660. Additionally, in the Judgment the Trial Court found that there was a press release on September 6, 2024, a radio report on September 9, 2024, and information posted on SMART’s website about Ballot Issue 3A prior to the September 20, 2024, deadline to submit TABOR comments. CF, pp. 660—61. Thus, contrary to Masson’s assertions, there were several additional notices available about the ballot title for Ballot Issue 3A being set.

Therefore, there is ample evidentiary support in the record to support the Trial Court’s finding, which it adopted from SMART’s Motion, that there is no rational argument based on law or evidence to support Masson’s claim.

iii. Masson waived her right to a hearing on whether SMART was entitled to fees and, in any event, the Trial Court was not required to conduct a redundant hearing.

A court cannot award attorney fees under § 13-17-103, C.R.S. in the absence of a hearing, if requested, and detailed findings of fact. *See Padilla v. Ghuman*, 183 P.3d 653, 663 (Colo. App. 2007). However, a trial court is not required to hold a redundant hearing prior to awarding attorneys fees if the court heard sufficient evidence and arguments at trial to make detailed findings of fact that the moving party is entitled to attorneys fees. *See Padilla*, 183 P.3d at 662—63.

Here, Masson waived her right to a separate hearing on whether attorneys fees should be awarded because she only made a request for a hearing “on their reasonableness.” CF, p. 728 (“To the extent that the court does consider fees against Masson, she requests a hearing *on their reasonableness*.”) (emphasis added). Further, Masson stipulated to the reasonableness of SMART’s fees prior to the hearing that was set by the Trial Court. CF, p. 804.

In any event, the Trial Court was not required to hold a redundant hearing on whether Masson’s lawsuit was frivolous. Like in *Padilla*, the Trial Court conducted a bench trial and heard evidence from all parties regarding the grounds on which Masson’s claims were based and the merits of those claims. 183 P.3d at 662. The Trial Court also allowed post-trial briefing to give Masson the opportunity to find a

case to support her position. *See* CF, p. 1102. The Trial Court then made detailed findings in the Judgment about the merits of Masson’s claim and adopted the analysis from SMART’s Motions regarding the factors set forth in § 13-17-103(1), C.R.S. 2024*. The record shows that the Trial Court heard sufficient evidence and argument at trial and in post-trial briefs to make the findings of fact that it adopted in SMART’s Motion and to conclude that SMART was entitled to attorneys fees. *See Padilla*, 183 P.3d at 663.

- 2. The directive in § 1-11-217(2), C.R.S. 2024* is clear: the judgment against Masson shall provide that Masson is liable for all fees incurred in the election for Ballot Issue 3A by all contestees, including reasonable costs and attorneys fees, because her suit was ruled frivolous.**

A. Standard of review and preservation.

As with issue 1, the award of attorneys fees to the Town of Telluride and the Town of Mountain Village is reviewed for abuse of discretion. Statutory interpretation is reviewed de novo. *McCoy v. People*, 442 P.3d 379, 389 (Colo. 2019). Statutory words and phrases are read in context, and the court is to construe them according to the rules of grammar and common usage. *Id.*

The court must read the statutory “scheme as a whole, giving consistent, harmonious, and sensible effect to all of its parts” in order to effectuate the purpose of the legislative scheme. *Doubleday v. People*, 364 P.3d 193, 196 (Colo. 2016). The court must “avoid constructions that would render any words or phrases

superfluous or lead to illogical or absurd results.” *Id.* “If the statute is unambiguous, [the court] need not conduct any further statutory analysis.” *Id.*

As with issue 1, Masson’s Opening Brief does not comply with the requirement of C.A.R. 28(a)(7)(A) in that it does contain under a separate heading (or anywhere else) a statement of whether the issue regarding whether all three contestees are entitled to all attorneys fees is preserved, and if preserved, the precise location in the record where the issue was raised and where the court ruled. Therefore, it is within the Court’s discretion to refuse to consider Masson’s argument and dismiss the appeal. C.A.R. 38(a).

B. SMART and the Towns are entitled to attorneys fees under § 1-11-217(2), C.R.S. 2024* because there was a judgement entered against Masson and her lawsuit was ruled frivolous.

Section 1-11-217(2), C.R.S. provides:

“A judgment against the contestor pursuant to the provisions of section[.]...1-11-212, concerning the determination of a ballot issue...*shall* provide that the contestor is liable for *all* fees incurred in the contested election by *all* contestees, including reasonable costs and attorneys fees, but a judgment for costs and fees shall be awarded in favor of the state or a political subdivision only if the suit is ruled frivolous, as provided in article 17 of title 13, C.R.S.” (emphasis added).

Since issue two is only applicable to the Towns, SMART limits its argument on that issue to asserting its position that, by its plain terms, § 1-11-217(2), C.R.S. 2024* requires a judgment against Masson to provide that she is liable for all fees

incurred by all contestees, because her lawsuit was ruled frivolous. CF, 781. In short, “all” means all.

CONCLUSION

Masson sought to nullify a valid election based on claims that were not supported by a rational argument based on law or fact (alleged that (i) illegal votes were received without providing the list required by statute, which would have dispelled her claim, (ii) the ballot language and TABOR Notice were misleading despite the fact that the word “debt” never appears in the language or the notice, and (iii) SMART violated the constitution by not providing additional notice about the opportunity to submit TABOR comments without any evidence or legal authority to support her vague and conclusory claim). Masson waited until two days before trial to abandon some of her baseless claims, but elected to proceed to trial on two of them. The Trial Court gave Masson every opportunity to try to substantiate her remaining claims (held a trial involving exhibits and live testimony, permitted post-trial briefing to permit Masson the opportunity to find legal authority to support her claim, and reviewed briefing directly on the issue of whether the claims were frivolous and lacking substantial justification). Despite having ample opportunities to try to substantiate her claims, Masson never did.

The Trial Court clearly considered all of the evidence and went out of its way to give Masson the opportunity to support her claim with legal authority. Only then did the Trial Court decide to adopt the analysis in SMART's Motion as its own, which was within its discretion, and to rule that Masson's lawsuit was frivolous and lacked substantial justification. There is ample evidence in the record to support the Trial Court's decision, and the Trial Court was not required to hold a redundant hearing (a hearing that was waived in any event). Therefore, the Trial Court did not abuse its discretion, and the Fee Order should be affirmed.

Additionally, Masson failed to preserve any of the arguments raised in her Opening Brief. Thus, there are additional grounds to affirm the Fee Order.

The Court should affirm the Trial Court's order for the reasons stated herein.

REQUEST FOR ATTORNEYS FEES

C.A.R. 38 allows for attorneys fees for failure of an appellant to comply with the Colorado Appellate Rules. Additionally, if the appellate court determines that an appeal is frivolous, "it may award damages it deems appropriate, including attorney fees, and single or double costs to the appellee." C.A.R. 38. Section 13-17-102(2.5), C.R.S. 2025* provides that in a civil action appealed to any court of record, the court shall award reasonable attorneys fees against the attorney or party who has brought a civil action, either in whole or in part, that the court determines lacked substantial

justification. “An appeal is frivolous as filed if the judgment by the court below ‘was so plainly correct and the legal authority contrary to appellant’s position so clear that there is really no appealable issue.’” *In re Est. of Everhart*, 493 P.3d 272, 279 (Colo. App. 2021).

SMART requests an award of attorneys fees and double costs because Masson’s appeal is frivolous as filed. Masson failed to preserve any of the issues argued on appeal. Masson’s Response failed to cite or address any of the eight factors set forth in § 13-17-103, C.R.S. 2024* and her attempted wholesale incorporation of prior pleadings was ineffective. Further, Masson never presented a cogent constitutional argument to the Trial Court in order to enable the Trial Court to consider and rule on the argument. Since it is clear that Masson did not have an appealable issue, her appeal was frivolous as filed.

In the alternative, SMART requests an award of its attorneys fees under C.A.R. 38, because Masson failed to comply with the Colorado Appellate Rules. Masson failed to comply with C.A.R. 28(a)(7)(A) because her Opening Brief does not contain a statement under a separate heading (or anywhere else) a statement of whether the issues presented were preserved, and if preserved, the precise location in the record where the issues were raised and where the court ruled.

Respectfully submitted this 2nd day of July, 2026.

BUTLER SNOW LLP

s/ Dalton Kelley

Dalton Kelley, #53948

David G. Mayhan, #15146

*Counsel for Defendant-Appellee
San Miguel Authority for Regional
Transportation*

CERTIFICATE OF SERVICE

I hereby certify that the foregoing **Answer Brief of Appellee San Miguel Authority for Regional Transportation (“SMART”)** was electronically filed and served via the Colorado Courts Electronic Filing System this 2nd day of July, 2026, and addressed to the following parties that have entered their appearances in the underlying action:

Morgan C. Smith, #61808
Morgan C. Smith Law Firm
3130 Last Dollar Rd.
PO Box 3460
Telluride, CO 81435
Telephone: (970) 239-1470
morgan@morgancsmithlaw.com
*Attorneys for Plaintiff-Appellant
Emily Masson*

Nicholas C. Poppe. #47507
Nathan Dumm & Mayer P.C.
7900 E. Union Avenue, Suite 600
Denver, CO 80237-2776
Telephone: 303-691-3737
NPoppe@ndm-law.com
*Attorneys for Defendant-Appellee
Town of Telluride*

David H. McConaughy, #26165
Christine L. Gazda, #56462
Garfield & Hecht, P.C.
910 Grand Avenue, Suite 201
Glenwood Springs, CO 81601
Telephone: (970)947-1936
dmcconaughy@garfieldhecht.com
cgazda@garfieldhecht.com
*Attorneys for Defendant-Appellee
Town of Mountain Village*

s/ Dalton Kelley
Dalton Kelley, #53948